

	<i>Car Stop Auto Inc.</i>	The court shall enter judgment for plaintiff and against defendants Car Stop Auto Inc., Murtaza Z. Mirza and Mirza M. Gulzar in the amount of \$6,000 plus \$1,952.81 in attorney fees pursuant to contract. The court will sign the proposed judgment. Plaintiff shall give notice.
304	<i>Habibi vs. Catholic Charities Diocese of San Diego</i>	The unopposed demurrer filed by defendant Catholic Charities Diocese of San Diego (Defendant) directed to the first amended complaint (FAC) of plaintiff Ghulam Reza Habibi (Plaintiff) is SUSTAINED IN PART with leave to amend. Plaintiff shall file a second amended complaint no later than 6/12/26. Defendant's unopposed motion to strike is GRANTED without leave to amend. <u>Demurrer</u> <u>First Cause of Action for Negligence:</u> The allegations in the FAC appear sufficient to allege a duty owed by Defendant to Plaintiff. (FAC ¶¶ 14, 30.) Defendant argues discretionary decisions in administering public programs do not create tort liability absent a mandatory statutory directive, citing <i>Guzman v. County of Monterey</i> (2009) 46 Cal.4th 887. But that case dealt with public entity liability under Government Code section 815.6. Here, the FAC alleges Defendant is a nonprofit organization. (See FAC ¶ 8.) Moreover, Defendant makes no argument it is a public entity such that the provisions of Government Code section 815.6 would apply to it. Defendant has thus failed to show the claim is subject to demurrer on this ground.

	However, Defendant is correct the negligence claim appears to be barred by the two-year statute of limitations set forth in Code of Civil Procedure section 335.1. Although the FAC does not include any dates, the allegations of the initial complaint show Plaintiff’s negligence claim accrued in April 2023, when Plaintiff suffered injury as a result of Defendant’s alleged breaches. (See Compl., p. 3; <i>Doe v. Roman Catholic Bishop of Sacramento</i> (2010) 189 Cal.App.4th 1423, 1431 [“Generally speaking, a cause of action accrues for purposes of a statute of limitations at the time when the cause of action is complete with all of its elements.”].) “Facts once alleged cannot be withdrawn from consideration by merely filing an amended pleading omitting them without explanation. Accordingly, the court [is] fully justified in examining and considering the original complaint. (<i>Lee v. Hensley</i> (1951) 103 Cal.App.2d 697, 709.) The initial complaint attempted to allege application of the delayed discovery rule to Plaintiff’s claims, but the allegations as pled are insufficient to support application of the rule in this instance. (See <i>Fox v. Ethicon Endo-Surgery, Inc.</i> (2005) 35 Cal.4th 797, 807 [discussing delayed discovery rule].) Here, the initial pleading alleged: “I only fully understood how badly it affected me after some time passed, which is why I am using the delayed discovery rule to file this case now.” (Compl., p. 3.) This conclusory allegation is insufficient to show the delayed discovery rule should apply to Plaintiff’s claim. Based on the foregoing, the demurrer to the negligence cause of action on statute of limitations grounds is SUSTAINED with 20 days leave to amend.
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Defendant also demurred to the second and third causes of action but given both causes of action will be stricken as discussed below, the court does not reach Defendant's arguments regarding the demurrer as to these causes of action.

Motion to Strike

A party given leave to amend following a demurrer is only authorized to amend as permitted by the court ruling. (*Harris v. Wachovia Mortgage, FSB* (2010) 185 Cal.App.4th 1018, 1022-1023.)

Here, the court's November 10, 2025 order sustaining Defendant's demurrer to Plaintiff's original complaint with leave to amend did not permit the addition of new causes of action. (See ROA 31.) The court's ruling permitting leave to amend was limited to the causes of action alleged in the initial complaint. (*Ibid.*) The FAC filed with the court now asserts an additional cause of action for breach of implied promise/promissory estoppel. The FAC thus asserts a new cause of action that is not within the scope of the court's prior order granting leave to amend. The FAC served on Defendant also includes an additional cause of action for negligent infliction of emotional distress, which also exceeds the scope of the court's prior order.

Accordingly, Defendant's motion to strike the second and third causes of action is **GRANTED without leave to amend**.

The court declined to consider the untimely oppositions pursuant to CRC 3.1300(d).

The court continues the CMC to 9/28/26 at 8:45am.

Defendant shall give notice.